

Sujeet Kumar Singh v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 11 April 2023 · Writ C No. 6553 of 2023 · **Petition disposed; fresh order to follow Supply Code procedure.**

HEADNOTE

Writ against a recovery certificate and a recovery citation for alleged electricity-theft dues was disposed of after the Electricity Department stated that the citation had been withdrawn and that a fresh order would be passed. The Court left the Department at liberty to pass that order strictly in accordance with the procedure under the U.P. Electricity Supply Code, 2005, without deciding theft or the dues.

FACTUAL SUMMARY

Sujeet Kumar Singh petitioned the Allahabad High Court against a recovery certificate dated 16 July 2021 issued by respondent no. 5 and a recovery citation dated 15 July 2022 issued by respondent no. 3, both for recovery of electricity dues in an alleged theft of electricity. Counsel for the Electricity Department sought time on 27 February, 14 March and 21 March 2023 to complete instructions. The Court directed that no coercive measures be taken and extended that interim protection until the next listing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

fresh order after withdrawal of a theft-dues recovery citation

HOLDING

Where a writ challenges a recovery certificate and a recovery citation for electricity-theft dues, and the Electricity Department states that the recovery citation has been withdrawn and that a fresh order will follow the prescribed procedure, the petition is disposed of with liberty to the Department to pass that order strictly in accordance with the procedure under the U.P. Electricity Supply Code, 2005. ¶ 4

FLAG The order names the U.P. Electricity Supply Code, 2005 but cites no clause number.

PRINCIPLE TAGS

fresh-order-under-supply-code-procedure The writ was disposed of once the Electricity Department withdrew the recovery citation in an alleged theft-dues matter and the Court left it to pass any fresh order strictly in accordance with the procedure prescribed by the U.P. Electricity Supply Code, 2005. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ELECTRICITY WAS STOLEN AND WHAT SUM, IF ANY, IS RECOVERABLE

Left to a fresh order by the Electricity Department in accordance with the procedure under the U.P. Electricity Supply Code, 2005. ¶ 4

NOT DECIDED — VALIDITY OF THE RECOVERY CERTIFICATE DATED 16 JULY 2021

Counsel's statement recorded withdrawal of the recovery citation dated 15 July 2022. The Court did not separately rule on the certificate. ¶ 4

